

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

GARY F MARQUEZ,

Respondent

) Case Number: FCS-13-348634

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent, Gary Marquez Jr., (Father) and Other Parent, Barbara Martinez (Mother). They share one minor child named Kai Marquez born 11/10/12.
- 2) On April 8, 2026, Father filed a Request for Order seeking modification of the existing visitation (i.e., parenting time) orders. In particular, Father requests:
 - a. A week on/week off parenting plan; and
 - b. Exchanges to occur on Fridays at school
- 3) On May 11, 2026, the matter was heard on the Court's "Readiness" calendar. The Court referred the parties to FCS Mediation to occur on June 16, 2026 and set a return hearing for June 23, 2026.
- 4) On May 18, 2026, Mother filed a Responsive Declaration to Father's RFO, which has been read and considered by this Court.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child(ren) is the United States.

3 2) Father's parenting time with the minor child shall be on the 1st, 3rd, and 5th weekends of each
4 month from Friday afterschool (or 3:00 p.m., in the Summer) until Sunday at 6:00 p.m. Father
5 shall do the pickup and drop offs.

6 3) The parents shall work out a Holiday schedule on their own. Any agreements reached shall be in
7 writing (email, text, or letter). If they are unable to work out a Holiday schedule on their own,
8 either parent may file a motion with this Court seeking such orders.

9 4) Father is ordered to disclose the full name and contact information for any person with whom he
10 currently resides.

11 5) Minor child shall only be transported by a person who has a valid California Driver License and
12 insurance.

13 6) The Court will prepare the Findings and Order After Hearing.
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